

Yogesh vs State Of U.P. And Another on 30 April, 2026

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2026:AHC:98152

HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL APPEAL No. - 7396 of 2018

Yogesh

.....Appellant(s)

Versus

State of U.P. and Another

.....Respondent(s)

Counsel for Appellant(s)

:

Narayan Singh(Kushwaha)

Counsel for Respondent(s)

:

G.A.

Court No. - 51

HON'BLE MADAN PAL SINGH, J.

1. Heard learned counsel for the appellant and the learned A.G.A. for the State. No one appears for the opposite party no.2 even in the revised reading of the list despite the fact that notice has already been served upon him.

2. The present appeal has been filed with a prayer to quash the order dated 4th April, 2018 as well as entire proceedings Special Sessions Trial No. 30 of 2018 (Kitab Singh Vs. Chhaya Devi & Others), arising out of Case Crime No.163 of 2013, under Sections 363, 366 and 376 I.P.C. and Sections 3 (2) (v) of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities), Act, 1989, Police Station-Nidhauri Kalan, District-Etah.

3. It is the case of the appellant that on 9th September, 2013 a first information report was lodged by opposite party no.2 Kitab Singh against four persons including the appellant, which has been registered as Case Crime No.163 of 2013, under Sections 363 and 366 I.P.C. and Sections 3 (2) (v) of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities), Act, 1989, Police Station-Nidhauri Kalan, District-Etah alleging therein that on 30th August, 2013 at about 09:00 a.m. when her daughter (victim herein) went to taking grass along with Chhaya Devi at the field, which is outside the village, where Anil Kumar and Doorbin were present and in collusion with them, the appellant enticed away the victim.

4. Learned counsel for the appellant submits that after recovery, the statement of the victim has been recorded under Section 161 Cr.P.C. wherein she has stated that she went with Yogesh Kumar on 30.08.2013 at 9.00 a.m. on her own free will on the pretext of cutting grass to the field. The appellant met the victim at a bridge near the village to pick her up. As per their prior discussion, no one else from the village came to pick them up. She knew the appellant because he works as a dancer in Anil Kumar's theater in her village and that is why, she knew him for five months. The victim went on the calling of the appellant to Kalua village. After staying there for two days, the victim and the appellant went to Allahabad. Yogesh's uncle's name is Mr. Nema Singh. The victim and appellant stayed in a rented room of Jain Dharamshala in Allahabad. After that, the appellant and victim solemnized their marriage at the Shiva temple behind the Allahabad railway station. The appellant and the victim have been living together as husband and wife ever since. The appellant did not abduct the victim by force. All the things happened between them on their mutual advice. After the marriage, on coming to know that since a first information report has been lodged against them in the aforesaid police station, the appellant and the victim filed the case after contacting the lawyers in the Allahabad High Court for protection.

5. Learned counsel for the appellant further submits that in the statement recorded under Section 164 Cr.P.C. the victim has reiterated the same version as unfolded in her statement under Section 161 Cr.P.C.

6. Then, learned counsel for the appellant submits that in the writ petition being Criminal Misc. Writ Petition No. 18949 of 2013 (Smt. Saroj Kumari & Another Vs. State of U.P. & 3 Others), the appellant was directed to put an amount of Rs. 50,000/- in fixed deposit scheme of a nationalized

bank/post office for a period of not less than three years and the concerned Chief Medical Officer was directed to get the ossification test of the victim conducted. In compliance thereof, the appellant has deposited the said amount in the name of victim after opening an account in post office in her name. He also submits that as per the ossification test of the victim, she was aged about 18 years.

7. Further it is the case of the appellant that on the basis of the aforesaid facts, the Investigating Officer has submitted the final report in the aforesaid criminal case on 25th December, 2013. In between, when the victim was pregnant, the informant took away the victim along with him at her parental house and aborted her child and got her married again with another person.

8. It is then submitted that for taking the victim away along with the appellant at her matrimonial house, he made best efforts but all went in vein and ultimately, he filed a petition under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights and the same was decreed ex-parte in favour of the appellant. However, the same has also not been complied with by the informant/opposite party no.2.

9. Nearly after one year of the submission final report by the Investigating Officer, the opposite party no.2 has filed protest petition on 4th December, 2014 against four accused persons including the appellant before the trial court wherein the impugned summoning order has been passed against the appellant only. Hence the present criminal appeal.

10. The contention of the learned counsel for the appellant is that he is innocent and has been falsely implicated in the present case with ulterior motive, as the present first information report implicating the appellant is false and fabricated. The present first information report lodged by opposite party no.2 is nothing but a bundle of lie and the same has been lodged only for exploiting the appellant by indulging his name in a fake, false and frivolous case. The entire prosecution story as unfolded in the first information report is absolutely a self-made story projected by opposite party no.2 in order to resolve his interest. No case for the alleged offence is made out against the appellant. The impugned summoning order has been passed against the appellant under Sections 363, 366 and 376 I.P.C. and Sections 3 (2) (v) of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities), Act, 1989 only on the ground that as per medical jurisprudence, there is a difference of two years in the age which comes in the ossification test, sometimes it is two years more and sometimes it is two years less and hence the trial court has passed the impugned summoning order considering the age of the victim to be 16 years. However, the benefit of such difference always goes in favour of the accused.

11. Further, it is contended by the learned counsel for the appellant that the present criminal proceedings initiated against the appellant are not only malicious but also amount to an abuse of the process of the Court. Lastly, it is submitted that the no ingredients of alleged offence are born out from the first information report. On the cumulative strength of the aforesaid submissions, it is submitted by learned counsel for the appellant that the proceedings of the above mentioned complaint case are liable to be quashed by this Court.

12. On the cumulative strength of the aforesaid, learned counsel for the appellant submits that the summoning order impugned in the present criminal appeal passed against the appellant cannot be legally sustained and is liable to be quashed.

13. Learned A.G.A. has opposed the submissions made by the learned counsel for the appellant. He submits that since prima facie case is made out against the appellant-accused. He further submits that at the time of incident, the age of the victim was 15 years and 11 months and after ossification test, she was found about 18 years old and as per medical jurisprudence, there is a difference of two years in the age which comes in the ossification test, sometimes it is two years more and sometimes it is two years less and due to this the trial court has assumed the age of victim as 16 years at that time, therefore, she was minor. On the above premise, learned A.G.A. submits that no interference at this stage is called for by this appellate Court. As such, the present criminal appeal is liable to be dismissed.

14. I have examined the facts and circumstances of the case, the submissions made by the learned counsel for the appellants and learned A.G.A. and perused the materiel available on record including the impugned order.

15. From the perusal of the version as unfolded in the first information report, the statements of the victim recorded under Sections 161 and 164 Cr.P.C., the final report and other relevant documents, this Court is of the considered opinion that the entire criminal proceedings initiated against the appellant is not only malicious but also an abuse of process of law. In the statements recorded under Sections 161 and 164 Cr.P.C., the victim has specifically stated that she knew the appellant very well for the last five months from the date of alleged incident and she was in love with him. On the date of incident, on the pretext of taking grass, she left her house and went along with the appellant on her own free will. The victim stayed two days with appellant in Kalua village thereafter in Jain Dharamshala at Allahabad where she also solemnized her marriage with the appellant in Shiv Temple on her own sweet will and after that, she has been living with appellant as husband and wife since then. During that period, she has also never raised any alarm of her abduction. The victim along with appellant approached the Hon'ble High Court for their protection also. From the aforesaid it is apparently clear that no case under Section 376 I.P.C. is made out against the appellant.

16. So far as offence under Section 363 and 366 I.P.C. against the appellant is concerned, this Court finds that as per the ossification test the age of the victim was about 18 years and it is settled law that the age according to ossification test leaves margin of two years, meaning thereby that the said age can be more two years or can be less two years. As per settled law that the said margin of two years while determining the exact age of victim, always goes in favour of accused and the appellant is accused in the present case. As such, the age the victim at the time of incident can be said to be about 20 years after addition of two years i.e. she was major. In that circumstances, no case under Sections 363 and 366 I.P.C. can be said to be made out against the appellant. The trial court while passing the impugned order has wrongly assumed the age of victim as 16 years i.e. minor by reducing two years from the age as determined in the ossification test.

17. Neither from the first information report nor in the statements of the informant and victim, the case under Section 3 (2) (v) of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities), Act, 1989 can be said to be made out against the appellant, as there is no whisper of any abuse being done by the appellant against informant or the victim by using any caste indicated words. The trial court while passing the impugned order has also not considered the aforesaid aspect of the matter.

18. On the deeper scrutiny of the aforesaid facts and circumstances of the case and documents, this Court finds that the trial court has committed gross error in passing the impugned order and the same cannot be legally sustained and is liable to be quashed, as no prima facie case is made out against the appellant in any manner.

19. Consequently, the order dated 4th April, 2018 as well as entire proceedings Special Sessions Trial No. 30 of 2018 (Kitab Singh Vs. Chhaya Devi & Others), arising out of Case Crime No.163 of 2013, under Sections 363, 366 and 376 I.P.C. and Sections 3 (2) (v) of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities), Act, 1989, Police Station-Nidhauri Kalan, District-Etah are quashed.

20. Accordingly, the present criminal appeal is allowed.

(Madan Pal Singh,J.) April 30, 2026 Sushil/-